Income Tax Department
Government of India

Circumstances and conditions for the purposes of clause (*19*) of section 10.

2BBA. (1) For the purposes of clause (*19*) of section 10, the circumstances of death of a member of the armed forces (including para-military forces) of the Union in the course of operational duties shall be the following, namely :—

(*i*) acts of violence or kidnapping or attacks by terrorists or anti-social elements;

(*ii*) action against extremists or anti-social elements;

(*iii*) enemy action in international war;

(*iv*) action during deployment with a peace keeping mission abroad;

(*v*) border skirmishes;

(*vi*) laying or clearance of mines including enemy mines as also mine sweeping operations;

(*vii*) explosions of mines while laying operationally oriented mine-fields or lifting or negotiation mine-fields laid by the enemy or own forces in operational areas near international borders or the line of control;

(*viii*) in the aid of civil power in dealing with natural calamities and rescue operations;

(*ix*) in the aid of civil power in quelling agitation or riots or revolts by demonstrators.

(2) It shall be certified by the Head of the Department where the deceased member of the armed forces (including para-military forces) last served, or the service headquarters, as the case may be, that the death of such member has occurred in the course of operational duties in circumstances mentioned in sub-rule (1).